

## 23STCV01739 23STCV01739

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-06-29

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Case Number: 23STCV01739 Hearing Date: June 29, 2026 Dept: 732

Alexander Montoya v. Philly Auto, Inc., et al.

Monday, June 29, 2026

CASE NUMBER: 23STCV01739

UNOPPOSED

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Plaintiff Alexander Montoya's Motion to Compel Compliance with Subpoena against Nonparty Mercedes Benz of Los Angeles. \_\_\_\_\_

Facts: This is an action for fraud and breach of warranty. The First Amended Complaint alleges as follows. Plaintiff Alexander Montoya ("Plaintiff") purchased a 2020 Mercedes Benz A35 AMG from Defendant Philly Auto, Inc. based on express representations and warranties that the vehicle was being repaired to be in good condition for its eventual buyer. (FAC ¶¶ 9–11.) The vehicle contained or developed substantial defects contrary to the dealer's representations, and they have been unable to fix the vehicle. (FAC ¶¶ 13–15.)

Procedural History: Plaintiff filed the original Complaint on January 26, 2023, and filed the FAC on July 28, 2023, alleging eight causes of action:

Consumer Legal Remedies Act

Intentional Misrepresentation

Negligent Misrepresentation

Breach of Express Warranty

Failure to Promptly Repurchase

Breach of Implied Warranty of Merchantability

Unfair Competition

Vehicle Code § 11711

Plaintiff filed the present motion to compel compliance with subpoena on June 18, 2026. No opposition has been filed.

Analysis

#### MOTION TO COMPEL COMPLIANCE WITH SUBPOENA

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff Alexander Montoya ("Plaintiff") seeks to compel nonparty Mercedes-Benz of Los Angeles ("MBLA") to comply with a subpoena issued to it on February 13, 2025. (Savage Decl. ¶ 2.) The subpoena seeks documents related to MBLA's service of the subject vehicle in this action or its communications with Defendant Philly Auto, Inc. ("Defendant") regarding the same. (Savage Decl. Exh. 2.) The parties agreed to pause discovery while mediation was pending, and said mediation concluded on March 19, 2026, without settlement. (Savage Decl. ¶¶ 5–6.) Since then, no documents have been produced, no objection to the subpoena has been served, and no motion to quash has been filed. (Savage Decl. ¶¶ 7–8.)

Plaintiff contends that the documents are necessary because MBLA was one of the entities charged with repairing the subject vehicle, and it is thus in possession of witnesses or other information bearing upon Plaintiff's claims. (Motion at p. 2.) No opposition to the motion has been filed.

Good cause appearing for the documents requested, and no opposition having been filed, the motion to compel compliance is GRANTED. Responsive documents shall be produced within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

alexander montoya,

Plaintiff

V.

PHILLY AUTO, INC., et al.,

Defendants.

Case No.: 23STCV01739

Hearing Date: June 29, 2026

[TENTATIVE] RULING RE:

Plaintiff Alexander Montoya's Motion to Compel Compliance with Subpoena against Nonparty Mercedes Benz of Los Angeles.

Plaintiff Alexander Montoya's Motion to Compel Compliance with Subpoena against Nonparty Mercedes Benz of Los Angeles is GRANTED. Responsive documents shall be produced within 20 days of this order.

Plaintiff to give notice.

Dated: June 29, 2026

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Hon. Richard S. Kemalyan

Judge of the Superior Court